

Meeting Name:	Licensing Sub-Committee
Date:	18 December 2025
Report title:	Licensing Act 2003: Kent Restaurant and Lounge, First Floor, 516 Old Kent Road, London SE1 5BA
Ward(s) or groups affected:	Old Kent Road
Classification:	Open
Reason for lateness (if applicable):	Not applicable
From:	Strategic Director of Environment, Sustainability and Leisure

RECOMMENDATION

1. That the licensing sub-committee considers an application made Kent Restaurant and Lounge Limited for a premises licence to be granted under the Licensing Act 2003 in respect of the premises known as Kent Restaurant and Lounge, First Floor, 516 Old Kent Road, London SE1 5BA.
2. Notes:
 - a) This application is for a premises licence and has been submitted under Section 17 of the Licensing Act 2003. The application is subject to two outstanding representations from responsible authorities and is therefore referred to the licensing sub-committee for determination.
 - b) Paragraphs 8 to 13 of this report provide a summary of the application. A copy of the application submitted with the application are attached to this report as Appendix A.
 - c) Paragraphs 14 to 21 of this report deal with the representations submitted in respect of the application by the responsible authorities are available in Appendix B and the representations from other persons are in Appendix C. A map showing the location of the premises is attached to this report as Appendix F.
 - d) A copy of the council's approved procedure for hearings of the sub-committee in relation to an application made under the Licensing Act 2003, along with a copy of the hearing regulations, has been circulated to all parties to the meeting.

BACKGROUND INFORMATION

The Licensing Act 2003

3. The Licensing Act 2003 provides a licensing regime for:
 - The sale of and supply of alcohol
 - The provision of regulated entertainment
 - The provision of late night refreshment.
4. Within Southwark, the licensing responsibility is wholly administered by this council.
5. The Act requires the licensing authority to carry out its functions under the Act with a view to promoting the four stated licensing objectives. These are:
 - The prevention of crime and disorder
 - The promotion of public safety
 - The prevention of nuisance
 - The protection of children from harm.
6. In carrying out its licensing functions, a licensing authority must also have regard to:
 - The Act itself
 - The guidance to the act issued under Section 182 of the Act
 - Secondary regulations issued under the Act
 - The licensing authority's own statement of licensing policy
 - The application, including the operating schedule submitted as part of the application
 - Relevant representations.
7. The premises licence application process involves the provision of all relevant information required under the Act to the licensing authority with copies provided by the applicant to the relevant responsible bodies under the Act. The application must also be advertised at the premises and in the local press. The responsible authorities and other persons within the local community may make representations on any part of the application where relevant to the four licensing objectives.

KEY ISSUES FOR CONSIDERATION

The premises licence application

8. On 20 October 2025 Kent Restaurant and Lounge Limited applied to this Council for a premises licence to be granted under the Licensing Act 2003 in respect of the premises known as Kent Restaurant and Lounge, First Floor, 516 Old Kent Road, London SE1 5BA.

9. The hours applied for are summarised as follows:

- The sale by retail of alcohol (both on and off sales):
 - Monday to Wednesday from 11:00 to 01:30
 - Thursday to Saturday from 11:00 to 03:00
 - Sunday from 12:00 to 01:30
- The provision of late night refreshment (both indoors and outdoors):
 - Monday to Wednesday from 23:00 to 02:00
 - Thursday to Saturday from 123:00 to 03:30
 - Sunday from 23:00 to 02:00
- The provision of regulated entertainment in the form of plays, films, indoor sporting events, live music, recorded music and performances of dance (indoors):
 - Monday to Wednesday from 07:00 to 02:00
 - Thursday to Saturday from 07:00 to 03:30
 - Sunday from 07:00 to 02:00
- Opening hours:
 - Monday to Wednesday from 07:00 to 02:00
 - Thursday to Saturday from 07:00 to 03:30
 - Sunday from 07:00 to 02:00
- Non-standard hours for licensable activities and opening hours:
 - An extra hour added to the terminal hours on the morning that Greenwich meantime changes to British Summer time.
 - When Monday follows a Bank holiday Sunday to remain open until 03:00. When a Bank holiday weekend Friday and Saturday to remain open for one additional hour.
 - Mourn Day Thursday, Good Friday, Easter Sunday, May Day, St Patrick's Day, St David's Day, St George's Day, Christmas Eve, Boxing Day, Windrush Day, Gay Pride Day, 4th July, (Jamaica, St Lucia, Barbados, Trinidad and Tobago, Dominica, Dominican Republic, Guyana, Nigeria, Gambia, Ghana, Liberia, Ivory Coast & Sierra Leone Independence Days) to remain open for one additional hour.
 - The provision of licensable activities from the start of the permitted hours on New Year's Eve until the end of the permitted on New Year's Day.

10. The premises, and the intended operation of the premises, are described in the application simply as follows:

“Kent Restaurant and Lounge is a wine bar and restaurant located on the first floor of 516 Old Kent Road, SE1. The premises has a courtyard leading to the entrance of the restaurant. The entrance to the restaurant is located on the right-hand side at the top of the stairs. The restaurant has an outside eating area as well as a smoking balcony and emergency (metal staircase) fire exit leading outside to the courtyard. On the left-hand side of the entrance at the top of the stairs is the lounge with additional seating and bar to accommodate large bookings for all corporate and private functions on a pre-booked basis in line with our private hire policies. There are two designated female and male toilets with an additional emergency (metal staircase) fire exit door leading from the lounge to the courtyard.”

11. The premises licence application form provides the applicant’s operating schedule. Parts A, B, E, F, G, H, J, K, L, and M of the operating schedule set out the proposed licensable activities, operating hours and operating control measures in full, with reference to the four licensing objectives as stated in the Licensing Act 2003. Should a premises licence be issued in respect of the application the information provided in part M of the operating schedule will form the basis of conditions that will be attached to any licence granted subsequent to the application.
12. A copy of the application is attached to this report as Appendix A.

Designated premises supervisor (DPS)

13. The proposed DPS is Gilbert Lue-Kong who holds a personal licence with the London Borough of Lewisham.

Representations from responsible authorities

14. There were three representations from the responsible authorities, namely the Metropolitan Police Service (Licensing Division), the council’s environmental protection team and licensing as a responsible authority.
15. The representation from the police states that the premises has applied for hours vastly excessive to those recommended in the Southwark statement of licensing policy, especially for a residential area. The police believe that the plans do not truly reflect the layout of the premises. There is a problematic history with the premises in relation to crime and disorder and an ongoing concern that the previous licence holder may still be intrinsically linked to the current business operation.
16. The representation from the council’s environmental protection team (EPT) also points to the applied hours being excessive to the licensing policy, thereby creating a potential risk of public nuisance as an ‘unacceptable disturbance’. The representation makes an extensive list of recommendations with conditions, should the licensing sub-committee be minded to grant all, or part of the application.

17. The representation from licensing as a responsible authority relates to all four of the licensing objectives. It states that the hours are excessive, akin to the representations from the police and EPT; and that it would be contrary to members of the licensing committee's own policy decision, were a sub-committee minded to grant. The area is also changing, with an increased number of residential dwellings either in the process of being built, or planned in the near future. There are also concerns as to the history of the premises and the potential involvement of previous management.
18. The three representations are available in Appendix B.

Representations from other persons

19. There are representations from 15 other persons, available in Appendix C.
20. The representations each contain an individual impact statement, followed by a community response. The representations raise concerns over previous poor management practices; and that there may be high chance of this being repeated, should a late licence be granted. It's stated that the premises' location in relation to residential properties means that there could be risks to residents under all four of the licensing objectives and that the venue is not suitable for a nightclub.

Conciliation

21. All representations were sent to the applicant's legal representative, but no response has been forthcoming.

Premises history

22. The premises now operated as Kent Restaurant and Lounge was previously operated as a licensed premises called K-Che. K-Che was subject to two expedited reviews because of serious crime and disorder. The incident which prompted the second review was so serious that it led to the revocation of the premises licence.
23. K-Che was also the subject of many complaints from local residents over the time it operated. Prior to the premises housing K-Che, the premises operated under several guises as licensed premises, and it has been subject to noise complaints, and allegations of being associated with crime and disorder, since 2005 (when licensing legislation came under the purview of this authority for Southwark).
24. In February 2016, a premises licence was issued in respect of the premises to The K-Che Club Limited. This premises was subsequently revoked on 12 May 2021.
25. On 1 September 2022, a premises licence was issued in respect of the premises to Erico Entertainment Limited. A copy of the notice of decision is attached as Appendix D.

26. On 25 September 2024 Erico Entertainment Ltd went into liquidation. This resulted in lapse of the premises licence under s.27 Licensing Act 2003.
27. On 2 December 2024 Erico Entertainment Ltd applied for a premises licence. This application was withdrawn by the then Director Eric Doe during the course of the licensing sub-committee on 6 February 2025.
28. On 21 March 2025 Erico Entertainment Ltd applied for a premises licence. This application was withdrawn by the then Director Eric Doe during the course of the licensing sub-committee on 5 June 2025.
29. The applicant was sent an email on 18 December stating:

Further to today's Hearing, the matter has been adjourned until 27 February, at which point the matter will be held online via Microsoft Teams. A copy of the formal Notice of Adjournment will be sent to you in the coming days.

As advised, you will need to send me an electronic copy of the lease to circulate to all parties well ahead of the Hearing. You should make sure that the lease is a signed copy – it would appear that the version you brought in today was unsigned and therefore unlikely to be legally binding as any recent change of lease does not appear to have been registered with the Land Registry.

You have also been advised that the freeholders of the property should also make themselves available for the online Hearing on 27 February.

30. The formal Notice of Adjournment was sent on 22 December.
31. On 8 January, the applicant was emailed again, stating:

Further to the adjournment, the Hearing is to take place online on 27 January.

I am still awaiting an electronic copy of the lease to circulate to all parties well ahead of the Hearing.

You must ensure that the lease is a signed/witnessed copy – it would appear that the version you brought in previously was unsigned and therefore unlikely to be legally binding as any recent change of lease does not appear to have been registered with the Land Registry.

Please respond to this email.

32. No response has been received to the above correspondence.

Temporary event notices

33. The table below contains a 12 month history of temporary events notices:

Applicant	Dates	Activities	Counter Notice
Ramatulai Bah	08/02/2025 to 09/02/2025 from 20:00 to 03:30	Late TEN: The sale by retail of alcohol (on sales), regulated entertainment and LNR for 115 persons	No
Audrey Straker	05/04/2025 to 06/04/2025 from 16:00 to 03:30	Late TEN: The sale by retail of alcohol (on sales), regulated entertainment and LNR for 115 persons	No
Audrey Straker	12/04/2025 to 13/04/2025 from 17:00 to 02:00	Late TEN: The sale by retail of alcohol (on sales), regulated entertainment and LNR for 65 persons	No
Audrey Straker	10/05/2025 to 11/05/2025 from 16:00 to 03:00	Late TEN: The sale by retail of alcohol (on sales), regulated entertainment and LNR for 75 persons	No
Audrey Straker	25/05/2025 to 26/05/2025 from 16:00 to 04:30	Late TEN: The sale by retail of alcohol (on sales), regulated entertainment and LNR for 100 persons	No
Audrey Straker	07/06/2025 to 08/06/2025 from 16:00 to 05:00	Late TEN: The sale by retail of alcohol (on sales), regulated entertainment and LNR for 100 persons	No
Audrey Straker	14/06/2025 to 14/06/2025 from 15:00 to 23:45	The sale by retail of alcohol (on sales), regulated entertainment and LNR for 100 persons	No
Audrey Straker	05/07/2025 to 06/07/2025 from 15:00 to 03:30	The sale by retail of alcohol (on sales), regulated entertainment and LNR for 150 persons	No
Audrey Straker	26/07/2025 to 27/07/2025 from 16:00 to 05:00	The sale by retail of alcohol (on sales), regulated entertainment and LNR for 150 persons	No
Audrey Straker	15/08/2025 to 16/08/2025 from 16:00 to 05:00	Late TEN: The sale by retail of alcohol (on sales), regulated entertainment and LNR for 150 persons	No
Audrey Straker	30/08/2025 to 31/08/2025 from 16:00 to 05:30	Late TEN: The sale by retail of alcohol (on sales), regulated entertainment and LNR for 160 persons	No

Applicant	Dates	Activities	Counter Notice
Audrey Straker	30/08/2025 to 31/08/2025 from 16:00 to 05:30	Late TEN: The sale by retail of alcohol (on sales), regulated entertainment and LNR for 160 persons	Rejected – used up all TENS
Aubyn Graham	25/10/2025 to 26/10/2025 from 16:00 to 05:30	The sale by retail of alcohol (on sales) for 160 persons	Rejected – used up all TENS

Complaints

34. The table below contains a list of recent complaints against the premises:

Date	Source	Complaint
17/08/2025	Local resident	Noise nuisance. Advice sought for submitting a licence review
20/10/2024	Local resident	Noise nuisance
01/11/2025	Met Police	Unlicensed activity (*see below)
07/11/2025	Met Police	Unlicensed sale of alcohol

35. *The above table notes an incident on 1 November, where police attended the premises and found unlicensed activities in that no TEN had been applied for (the premises knowingly had no TENS remaining) yet regulated entertainment was taking place – patrons had paid to enter the premises and it would appear that those running the premises stated that Eric Doe was in charge of the premises. This would be classed as an unlicensed music event (UME).
36. A witness statement from the police is available in Appendix E. The premises was written to by the licensing authority. A response was received from the Applicant and is included after the statement.

Map

37. A map showing the location of the premises is attached to this report as Appendix F. The following is a list of licensed premises in the immediate vicinity (100 metres) of the premises application:

McDonalds, 518 Old Kent Road, London SE1 5BA, licensed for:

- The provision of late night refreshment (indoors):
 - Monday to Sunday from 23:00 to 05:00

Asda, 464-504 Old Kent Road, London SE1 5AG, licensed for:

- The sale by retail of alcohol (off sales):
 - Monday to Sunday from 00:00 to 00:00
- The provision of late night refreshment (indoors):
 - Monday to Sunday from 23:00 to 05:00.

Southwark Council statement of licensing policy

38. Council assembly approved Southwark's statement of licensing policy 2021 - 2026 on 25 November 2020. The policy came into effect on 1 January 2021. Sections of the statement that are considered to be of particular relevance to the sub-committee's consideration are:
- Section 3 - Purpose and scope of the policy. This reinforces the four licensing objectives and the fundamental principles upon which this authority relies in determining licence applications.
 - Section 5 - Determining applications for premises licences and club premises certificates. This explains how the policy works and considers issues such as location; high standards of management; and the principles behind condition setting.
 - Section 6 - Local cumulative impact policies. This sets out this authority's approach to cumulative impact and defines the boundaries of the current special policy areas and the classifications of premises to which they apply. To be read in conjunction with Appendix B to the policy.
 - Section 7 - Hours of operation. This provides a guide to the hours of licensed operation that this authority might consider appropriate by type of premises and (planning) area classification.
 - Section 8 - The prevention of crime and disorder. This provides general guidance on the promotion of the first licensing objective.
 - Section 9 - Public safety. This provides general guidance on the promotion of the second licensing objective.
 - Section 10 - The prevention of nuisance. This provides general guidance on the promotion of the third licensing objective.
 - Section 11 - The protection of children from harm. This provides general guidance on the promotion of the fourth licensing objective.
39. The purpose of Southwark's statement of licensing policy is to make clear to applicants what considerations will be taken into account when determining applications and should act as a guide to the sub-committee when considering the applications. However, the sub-committee must always consider each

application on its own merits and allow exceptions to the normal policy where these are justified by the circumstances of the application.

40. Members should take into consideration both the Southwark Statement of Licensing Policy and the Section 182 Guidance when making decisions. The links for these are below:

Southwark statement of licensing policy:

<https://www.southwark.gov.uk/sites/default/files/2024-09/Statement%20of%20Licensing%20Policy%202021-2026.pdf>

Section 182 Guidance:

[Revised guidance issued under section 182 of Licensing Act 2003 - GOV.UK](#)

Cumulative impact area (CIA)

41. The premises is located outside of a Cumulative Impact Area, but within a residential area.

The recommended closing time for public houses under the statement of licensing policy for that location is:

- 23:00 daily.

42. The recommended closing time for restaurants under the statement of licensing policy for that location is:

- 23:00 daily.

43. Night clubs (with 'sui generis' planning classification) are not considered appropriate for this area.

General guidance

44. Members should take into consideration both the Southwark statement of licensing policy and the Section 182 Guidance when making decisions.
45. Members are required to have regard to the Home Office guidance in carrying out the functions of licensing authority. However, guidance does not cover every possible situation, so long as the guidance has been properly and carefully understood, members may depart from it if they have reason to do so. Full reasons must be given if this is the case.
46. Members should also consider the National Licensing Policy Framework for the hospitality and leisure sectors. The link for this is below:

[National Licensing Policy Framework for the hospitality and leisure sectors - GOV.UK](#)

Climate change implications

47. Following council assembly on 14 July 2021, the council is committed to considering the climate change implications of any decisions.
48. Climate change is not a legal factor in the consideration of a grant of a premises license under the current licensing objectives, however members can make enquiries and request an agreement from applicants to promote the reduction of the impact of climate change that may be caused by the operation of the premises.
49. Examples of such an agreement may be:
 - Not to use single use plastics, such as disposable plastic glasses, when selling alcohol at the premises.
 - Encourage patrons not to drive to venues by providing details of public transport on their webpages/tickets.
50. The council's climate change strategy is available at the link below:

<https://www.southwark.gov.uk/sites/default/files/2024-12/Climate%20Change%20Strategy%20%28July%202021%29%20%287%29.pdf>

Community, equalities (including socio-economic) and health impacts

Community impact statement

51. Each application is required by law to be considered upon its own individual merits with all relevant matters taken into account.

Equalities (including socio-economic) impact statement

52. This report does not result in a policy decision and each application is required to be considered upon its own individual merits with all relevant matters taken into account. In considering the recommendations of this report, due regard must be given to the public sector equality duty set out in section 149 of the Equality Act 2010. This requires the council to consider all individuals when carrying out its functions.
53. Importantly, the council must have due regard to the need to eliminate discrimination, harassment, victimisation, or other prohibited conduct; advance equality of opportunity and foster good relations between people with protected characteristics and those who do not. The relevant protected characteristics are age, disability, gender reassignment, pregnancy and maternity, race, religion or belief, sex, sexual orientation. The public sector equality duty also applies to marriage and civil partnership, but only in relation to the need to eliminate discrimination, harassment, victimisation, or other prohibited conduct.

54. The equalities impact statement for licensing decisions is contained within the Southwark statement of licensing Policy 2021 – 2026 at the link below:

<https://www.southwark.gov.uk/sites/default/files/2024-09/Statement%20of%20Licensing%20Policy%202021-2026.pdf>

55. The equalities impact assessment is available at the link below:

<https://moderngov.southwark.gov.uk/documents/s92016/Appendix%20F%20-%20Equalities%20Impact%20Assessment.pdf>

Health impact statement

56. Health impacts cannot be considered by law when making decisions under the Licensing Act 2003.

Resource implications

57. A fee of £315.00 has been paid by the applicant company in respect of this application being the statutory fee payable for premises within non-domestic rateable value C.

Consultation

58. Consultation has been carried out on this application in accordance with the provisions of the Licensing Act 2003. A public notice was published in a local newspaper and similar notices were exhibited outside of the premises for a period of 28 consecutive days.

SUPPLEMENTARY ADVICE FROM OTHER OFFICERS

Assistant Chief Executive, Governance and Assurance

59. The sub-committee is asked to determine the application for a premises licence under Section 17 of the Licensing Act 2003.
60. The principles which sub-committee members must apply are set out below.

Principles for making the determination

61. The sub-committee is asked to determine the application for a premises licence under section 17 of the Licensing Act 2003.
62. The principles which sub-committee members must apply are set out below.
63. The general principle is that applications for premises licence applications must be granted unless relevant representations are received. This is subject to the proviso that the applicant has complied with regulations in advertising and submitting the application.

64. Relevant representations are those which:

- Are about the likely effect of the granting of the application on the promotion of the licensing objectives
- Are made by an interested party or responsible authority
- Have not been withdrawn
- Are not, in the opinion of the relevant licensing authority, frivolous or vexatious.

65. If relevant representations are received then the sub-committee must have regard to them, in determining whether it is necessary for the promotion of the licensing objectives to:

- To grant the licence subject to:
 - The conditions mentioned in section 18 (2)(a) modified to such extent as the licensing authority considers necessary for the promotion of the licensing objectives;
 - Any condition which must be under section 19, 20 or 21 be included in the licence.
- To exclude from the scope of the licence any of the licensable activities to which the application relates.
- To refuse to specify a person in the licence as the premises supervisor.
- To reject the application.

Conditions

66. The sub-committee's discretion is thus limited. It can only modify the conditions put forward by the applicant, or refuse the application, if it is necessary to do so. Conditions must be necessary and proportionate for the promotion of one of the four licensing objectives, and not for any other reason. Conditions must also be within the control of the licensee, and should be worded in a way which is clear, certain, consistent and enforceable.

67. The four licensing objectives are:

- The prevention of crime and disorder
- Public safety
- The prevention of nuisance
- The protection of children from harm.

68. Members should note that each objective is of equal importance. There are no other licensing objectives, and the four objectives are paramount considerations at all times.

69. Conditions will not be necessary if they duplicate a statutory position. Conditions relating to night café and take away aspect of the license must relate to the night time operation of the premises and must not be used to impose conditions which could not be imposed on daytime operators.

70. Members are also referred to the Home Office Revised Guidance issued under section 182 of the Licensing Act 2003 on conditions, specifically section

Reasons

71. If the sub-committee determines that it is necessary to modify the conditions, or to refuse the application for a premises licence application, it must give reasons for its decision.

Hearing procedures

72. Subject to the licensing hearing regulations, the licensing committee may determine its own procedures. Key elements of the regulations are that:
- The hearing shall take the form of a discussion led by the authority. Cross examination shall not be permitted unless the authority considered that it is required for it to consider the representations.
 - Members of the authority are free to ask any question of any party or other person appearing at the hearing.
 - The committee must allow the parties an equal maximum period of time in which to exercise their rights to:
 - Address the authority
 - If given permission by the committee, question any other party.
 - In response to a point which the authority has given notice it will require clarification, give further information in support of their application.
 - The committee shall disregard any information given by a party which is not relevant to the particular application before the committee and the licensing objectives.
 - The hearing shall be in public, although the committee may exclude the public from all or part of a hearing where it considers that the public interest in doing so outweighs the public interest in the hearing, or that part of the hearing, taking place in private.
 - In considering any representations or notice made by a party the authority may take into account documentary or other information produced by a party in support of their application, representations or notice (as applicable) either before the hearing or, with the consent of all the other parties, at the hearing.
73. This matter relates to the determination of an application for a premises licence under Section 17 of the Licensing Act 2003. Regulation 26(1) (a) requires the sub-committee to make its determination at the conclusion of the hearing.

Council's multiple roles and the role of the licensing sub-committee

74. Sub-committee members will note that, in relation to this application, the council has multiple roles. Council officers from various departments have been asked to consider the application from the perspective of the council as authority responsible respectively for environmental health, trading standards, health and safety and as the planning authority.
75. Members should note that the licensing sub-committee is meeting on this occasion solely to perform the role of licensing authority. The sub-committee sits in quasi-judicial capacity, and must act impartially. It must offer a fair and unbiased hearing of the application. In this case, members should disregard the council's broader policy objectives and role as statutory authority in other contexts. Members must direct themselves to making a determination solely based upon the licensing law, guidance and the council's statement of licensing policy.
76. As a quasi-judicial body the licensing sub-committee is required to consider the application on its merits. The sub-committee must take into account only relevant factors, and ignore irrelevant factors. The decision must be based on evidence, that is to say material, which tends logically to show the existence or non-existence of relevant facts, or the likelihood or unlikelihood of the occurrence of some future event, the occurrence of which would be relevant. The licensing sub-committee must give fair consideration to the contentions of all persons entitled to make representations to them.
77. The licensing sub-committee is entitled to consider events outside of the premises if they are relevant, i.e. are properly attributable to the premises being open. The proprietors do not have to be personally responsible for the incidents for the same to be relevant. However, if such events are not properly attributable to the premises being open, then the evidence is not relevant and should be excluded. Guidance is that the licensing authority will primarily focus on the direct impact of the activities taking place at the licensed premises on members of the public, living, working or engaged in normal activity in the area concerned.
78. Members will be aware of the council's code of conduct which requires them to declare personal and prejudicial interests. The code applies to members when considering licensing applications. In addition, as a quasi-judicial body, members are required to avoid both actual bias, and the appearance of bias.
79. The sub-committee can only consider matters within the application that have been raised through representations from other persons and responsible authorities. Interested parties must live in the vicinity of the premises. This will be decided on a case-by-case basis.
80. Under the Human Rights Act 1998, the sub-committee needs to consider the balance between the rights of the applicant and those making representations to the application when making their decision. The sub-committee has a duty under section 17 Crime and Disorder Act 1998 when making its decision to do all it can to prevent crime and disorder in the borough.

81. Other persons, responsible authorities and the applicant have the right to appeal the decision of the sub-committee to the magistrates' court within a period of 21 days beginning with the day on which the applicant was notified by the licensing authority of the decision to be appealed against.

Strategic Director of Resources

82. The head of regulatory services has confirmed that the costs of this process over and above the application fee are borne by the service.

BACKGROUND DOCUMENTS

Background Papers	Held At	Contact
Licensing Act 2003 Home Office Revised Guidance to the Act Secondary Regulations Southwark statement of licensing policy Case file	Southwark Licensing, C/O Regulatory Services, 160 Tooley Street, London SE1 2QH	Mrs. Esther Jones Tel: 020 7525 0752

APPENDICES

No.	Title
Appendix A	Copy of the application
Appendix B	Representations from responsible authorities
Appendix C	Representations from other persons
Appendix D	Notice of decision from 1 September 2022
Appendix E	Details of unlicensed music event
Appendix F	Map of locality

AUDIT TRAIL

Lead Officer	Aled Richards, Strategic Director Environment, Sustainability and Leisure		
Report Author	Andrew Heron, Principal Licensing Officer		
Version	Final		
Dated	13 January 2026		
Key Decision?	No		
CONSULTATION WITH OTHER OFFICERS / DIRECTORATES / CABINET MEMBER			
Officer Title		Comments Sought	Comments Included
Assistant Chief Executive - Governance and Assurance		Yes	Yes
Strategic Director of Resources		No	No
Cabinet Member		No	No
Date final report sent to Constitutional Team			13 January 2026